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CASE #	CASE NAME	HEARING NAME
CVME2610842	HARRIS VS DELAWARE STATE UNIVERSITY	HEARING ON PRELIMINARY INJUNCTION

Tentative Ruling: Preliminary Injunction is Denied.

Background - Daije Harris ("Plaintiff") contends that they have fulfilled all academic requirements mandated by Delaware State University ("University") to obtain a master's degree. Plaintiff alleges that University has wrongfully withheld their official academic transcripts, letter grades, and physical diploma. The complaint asserts the following causes of action: (1) breach of contract, (2) conversion, (3) promissory estoppel, (4) intentional infliction of emotional distress, and (5) injunctive relief.

Plaintiff seeks a preliminary injunction compelling University and National Collegiate Athletic Association (collectively "Defendants") to immediately release, issue, and transmit to Plaintiff their official unredacted graduate academic transcripts, letter grades, and diploma. Plaintiff asserts that they are likely to prevail on the merits of their claims and will be injured if this motion is not granted.

In opposition, University contends that this is the second time that Plaintiff has attempted to pursue such claims. It contends Plaintiff's lawsuit in Delaware was ultimately dismissed as to University. It argues that University is not subject to California jurisdiction, the statute of limitations has run, Plaintiff's claims are barred by res judicata, and they have failed to show that a preliminary injunction is justified.

Analysis - The purpose of a preliminary injunction is to preserve the status quo pending trial on the merits. In order to issue a preliminary injunction, the Court must balance the parties' interests. In balancing the parties' interests, the Court must exercise discretion "in favor of the party most likely to be injured . . ." (*Robbins v. Superior Court* (1985) 38 Cal.3d 199, 205.) The Court is to consider two interrelated factors: (1) the injury to plaintiff in absence of the injunction verses the injury the defendant is likely to suffer if an injunction is issued; and (2) is there a reasonable probability that plaintiffs will prevail on the merits at trial. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 633; *Robbins, supra*, 38 Cal.3d at 206.) "The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction." (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) It is the plaintiff's burden to "show all elements necessary to support issuance of a preliminary injunction." (*O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1481.) "An injunction properly issues only where the right to be protected is clear, injury is impending and so immediately likely as only to be avoided by issuance of the injunction." (*E. Bay Mun. Util. Dist. v. Cali. Dep't of Forestry & Fire Prot.* (1996) 43 Cal.App.4th 1113, 1126.) "[I]n order to obtain injunctive relief the plaintiff must ordinarily show that the defendant's wrongful acts threaten to cause irreparable injuries, ones that cannot be adequately compensated in damages." (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352.)

Plaintiff has the burden to establish they are entitled to injunctive relief. Plaintiff has failed to meet this burden. Plaintiff does not address any of their causes of action –

breach of contract, conversion, promissory estoppel, and intentional infliction of emotional distress. Plaintiff only makes a vague assertion that they are likely to prevail on their claims. Plaintiff does not identify any of the required elements for these causes of action or how their evidence supports said claims. Additionally, the evidence provided is not sufficient to establish the claims.

A breach of contract cause of action requires: (a) contract, (2) the plaintiff performed or was excused from performing, (3) a breach of the contract by defendant, and (4) resulting damages. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) The only evidence provided by Plaintiff is a short declaration. In this declaration, Plaintiff fails to provide a copy of the contract at issue. Plaintiff fails to state that they entered into an agreement with University. Plaintiff fails to point to any provision in said agreement they contend that University breached. Due to these issues, Plaintiff fails to establish a probability of prevailing on her breach of contract claim.

A cause of action for conversion requires: (1) plaintiff's ownership or rights of possession of personal property, (2) defendant's disposition of the personal property in a manner that is inconsistent with the plaintiff's property right, and (3) damages. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.) While Plaintiff asserts that they complied with all academic requirements for her degree, they provide no evidence or authority that this actually entitled their copies of her transcripts, grades, or a diploma. Plaintiff provides no graduation requirements in place by University. Plaintiff does not discuss or provide documents supporting what was required to obtain these things. Plaintiff provides no evidence that they complied with all of University's requirements. As such, Plaintiff fails to establish a probability of prevailing on this cause of action.

Promissory estoppel requires a clear promise, reliance by the party to whom the promise is made, reasonable reliance, and injury to the party asserting estoppel. (*Granadino v. Well Fargo Bank, NA* (2015) 236 Cal.App.4th 411, 416.) For promissory estoppel to apply, detrimental reliance must be shown. (*Aceves v. U.S. Bank, N.A.* (2011) 192 Cal.App.4th 218, 228-230.) Plaintiff fails to provide any evidence regarding a promise made by University. Plaintiff provides no evidence of detrimental reliance on their part. As such, Plaintiff has failed to establish a probability of prevailing on this claim.

Intentional infliction of emotional distress requires: (1) outrageous conduct, (2) intent to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional distress, and (4) accrual and proximate causation. (*Stoiber v. Honey* (1980) 101 Cal.App.3d 903, 921.) Behavior is outrageous if it exceeds all bounds typically tolerated by decent society. (*Id.*) There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.) There is no evidence of outrageous conduct on the part of University. Plaintiff fails to provide any evidence that University's conduct was done with the intention to cause emotional distress to Plaintiff or that Plaintiff sustained severe emotional distress. As such, Plaintiff again fails to establish a probability of prevailing on this claim.

Since Plaintiff has failed to meet their initial burden, the motion is denied.